

25VECV04404 25VECV04404

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-10

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C07%2F10%2F2026

Source SHA-256: 92c2f4859859902ef451d6c89d28c459167ae843884734e161945b2e9bcac808

Case Number: 25VECV04404 Hearing Date: July 10, 2026 Dept: T

IBRAHIM V SAHAFI

25VECV04404

[TENTATIVE] ORDER: Plaintiff Adel Ibrahim's Motion for Preliminary Injunction is DENIED.

Introduction

Plaintiff Adel Ibrahim, individually and as Trustee of the Ibrahim Family Trust Dated November 16, 2017, moves for a preliminary injunction preventing foreclosure of Plaintiff's real property. Defendant Mehrdad Sahafi opposes the motion.

Request for Judicial

Notice

Plaintiff's unopposed request for judicial notice is granted.

Discussion

In deciding whether to issue a preliminary injunction, a court must weigh two interrelated factors: (1) the likelihood that the moving party will ultimately prevail on the merits, and (2) the relative interim harm to the parties from issuance or non-issuance of the injunction. (Butt v. State of California (1992) 4 Cal. 4th 668, 677-78; Alliant Ins. Services, Inc. v. Gaddy (2008) 159 Cal. App. 4th 1292, 1299. "The trial court's determination must be guided by a 'mix' of the potential-merit and

interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (Butt, supra, 4 Cal.4th at 678.)

The general objective in issuing a preliminary injunction is to preserve the status quo. (Continental Baking Co. v. Katz (1968) 68 Cal.2d 512, 528.) In addition, it is rarely appropriate to grant a preliminary injunction that not only does not preserve the status quo but also grants the ultimate relief sought in the action, before trial. (Paramount Pictures Corp. v. Davis (1965) 228 Cal.App.2d 827.) A preliminary injunction must not issue unless the plaintiff can demonstrate reasonable probability that he will prevail on the merits, regardless of the balancing of the hardships or the irreparable nature of the harm. (San Francisco Newspaper Printing Co. v. Superior Court (1985) 170 Cal.App.3d 438, 442.)

Pursuant to Stipulation and Order, Plaintiff filed a First Amended Complaint ("FAC") on June 10, 2026 incorporating Defendant's filing of a Notice of Default on April 22, 2026. Plaintiff alleges causes of action for (1) cancellation of deed of trust; (2) quiet title; (3) declaratory relief; (4) financial elder abuse (Welfare and Institutions Code section 15610.30(a)); and (5) intentional infliction of emotional distress. In order to obtain the requested preliminary injunction, Plaintiff must establish the likelihood of prevailing on his claim that the June 18, 2014 "Note Secured by Deed of Trust" (the "Note") and "Deed of Trust with Assignment of Rents" (the "DOT") are unenforceable. The unenforceability of the Note and DOT underlie Plaintiff's causes of action for cancellation of deed of trust, quiet title and declaratory relief.

Likelihood
of Prevailing

Plaintiff alleges the DOT is unenforceable because (1) zero funds were provided to Plaintiff under the loan documents and no other consideration in any form was ever provided; (2) the DOT is unenforceable because it violates Family Code sections 760 and 1102; and (3) the Note and DOT are unenforceable because any claims are barred by the statute of limitations under Civil Code section 882.020 subdivision (a). (FAC, paras. 9-11.) Plaintiff also argues Defendant is barred by unclean hands from seeking foreclosure.

Lack of Consideration

The DOT was entered into between Adel

Ibrahim, as Trustor, and Mehrdad Sahafi, beneficiary, for the "Purpose of Securing (1) Performance of the indebtedness evidenced by a promissory note in the principal sum of \$250,000 herewith made by Trustor payable to Mehrdad Sahafi, herein called beneficiary. (2)

The performance of each agreement of Trustor incorporated by reference or contained herein. (3) Payment of additional sums and interest thereon which may hereafter be loaned to Trustor, or his successors or assignees, when evidenced by a promissory note or notes reciting that they are secured by this Deed of Trust." (Plaintiff's RJN, Ex. A.) The DOT encumbered property located at 4947 Fulton Ave., Sherman Oaks, CA 91432 (the "Property"). The Note provides "[i]n installment as herein stated for value received, the undersigned, jointly and severally promise to pay \$250,000 to Mehrdad Sahafi...with interest from June 18 of 2014 on unpaid principal at the rate of 1% percent per annum of interest shall be continued until the 18 day of June 2015 maturity date, at which time the entire unpaid principal and all the interest will be due...."

(Plaintiff's RJN, Ex. A.)

According to Adel Ibrahim, he executed the DOT and the Note based on his son, Tamer Ibrahim's representations that Defendant Sahafi promised to provide future services relating to development of property located at 33301 PCH, Malibu, CA (the "Malibu Property"). (Declarations of Adel

Ibrahim, Tamer Ibrahim; Daniel Krishel ISO of Motion for Preliminary Injunction ("Plaintiff's Evidence"), A. Ibrahim Dec., para. 3.) Tamer Ibrahim testifies that Defendant promised him that he would provide future service in connection with the Malibu Property, specifically he promised he would "perform all necessary services so that all required construction permits, and City of Malibu approvals, etc. could be obtained for that Malibu property."

(Id., T. Ibrahim Dec., para. 1.)

Tamer and Adel testify that Defendant never performed any of those services. (Id., A. Ibrahim Dec., para.

1.)

Defendant denies that the \$250,000 promissory note was executed for Defendant's payment for future services relating to the Malibu Property.

Defendant testifies Plaintiff executed the \$250,000 Note to purchase the geology, soil, percolation, archaeology, survey, biology, grading, architectural plans that Defendant had prepared for the former owner of the Malibu Property, Heavens Beach, LLC ("HBL").

(M. Sahafi Dec., paras. 8-11.) Defendant submits the Purchase Agreement for the Malibu Property, which expressly states that these plan documents would be subject to a separate purchase transaction between Plaintiff and "creditors." (Id. at Ex. 2, para. 11(c).) Defendant testifies that after negotiating, Plaintiff agreed that the value of Defendant's plans was \$250,000 and requested that payment in that amount be made by promissory note instead of cash. (Id. at paras. 11-12.) Defendant testifies that he delivered all papers as promised. (Id. at para. 14.)

The parties did not enter into a written agreement regarding what the \$250,000 Note was intended to pay for—plan documents or future services in obtaining permits and other documents necessary to develop the Malibu Property. The purpose of the \$250,000 Note was based on the parties' oral agreement, the terms of which are disputed.

On reply, Plaintiff does not deny that the Note was payment for Defendant's plan documents. Plaintiff only argues on reply that the documents were ultimately worthless. Even under Plaintiff's version of the parties' oral agreement, the Note was intended to compensate Defendant for his promise to perform future services. "Any benefit conferred, or agreed to be conferred, upon the promisor, by any other person, to which the promisor is not lawfully entitled, or any prejudice suffered, or agreed to be suffered, by such person, other than such as he is at the time of consent lawfully bound to suffer, as an inducement to the promisor, is a good consideration for a promise" (Civ. Code, sec. 1605.) "Mutual promises constitute consideration." (Johnson v. Holmes Tuttle Lincoln-Mercury, Inc. (1958) 160 Cal.App.2d 290, 295.)

Based on the evidence, Plaintiff received consideration for the Note and DOT. Plaintiff will be unlikely to prevail on his claim that the DOT is unenforceable based on lack of consideration.

Statute of Limitations

"Unless the lien of...deed of trust...has

earlier expired pursuant to Section 2911, the lien expires at, and is not enforceable by action for foreclosure commenced, power of sale exercised, or any other means asserted after, the later of the following times:

(1) If the final maturity date or the last date fixed for payment of the debt or performance of the obligation is ascertainable from the recorded evidence of indebtedness, 10 years after that date.

(2) If the final maturity date or the last date fixed for payment of the debt or performance of the obligation is not ascertainable from the recorded evidence of indebtedness, or if there is no final maturity date or last date fixed for payment of the debt or performance of the obligation, 60 years after the date the instrument that created the security interest was recorded.

(3) If a notice of intent to preserve the security interest is recorded within the time prescribed in paragraph (1) or (2), 10 years after the date the notice is recorded." (Civ. Code, sec. 882.020, subd. (a).)

Plaintiff argues Defendant cannot enforce the DOT because more than 10 years have passed since the Note matured and became due on June 18, 2015, as reflected in the recorded Note and DOT. (Plaintiff's RJN, Ex. 1.) Plaintiff maintains the DOT and accompanying power of sale expired and became unenforceable on June 18, 2025 under Civil Code section 882.020 subdivision (a)(1).

Defendant did not record and serve a Notice of Default initiating nonjudicial foreclosure proceedings until April 21, 2026, more than 10 months later. (Plaintiff's RJN, Ex. 2.) Plaintiff argues subdivision (a)(3) is wholly inapplicable to Defendant's nonjudicial foreclosure because he never recorded a separate notice of intent.

Plaintiff expressly waived his right to assert statute of limitations as a defense to enforcement of the Note. "Borrower hereby waives...the right to plead and statue [sic] of limitations as a defense to the repayment of all or any portion of this Note, and interest thereon, to the fullest extent allowed by law...." (Plaintiff's RJN, Ex. 1, Note, p.

Plaintiff argues the waiver does not apply because a separate notice of intent was not recorded pursuant to Civil Code section 882.020 subdivision (a)(3). Section 882.020 subdivision (a)(3) applies where a trustee has recorded a notice of intent to preserve the security interest. All parties concede that no notice of intent to preserve the security interest has been recorded by any party. Subdivision (a)(3) does not address waivers.

Civil Code section 882.020 subdivision (c) governs waiver of the statutes of limitation under subdivision (a)(1) to (3). "The times prescribed in this section may be extended in the same manner and to the same extent as a waiver made pursuant to Section 360.5 of the Code of Civil Procedure, except that an instrument is effective to extend the prescribed times only if it is recorded before expiration of the prescribed times." (Civ. Code, §882.020, subd. (c).)

Code of Civil Procedure section 360.5 provides, "No waiver shall bar a defense to any action that the action was not commenced within the time limited by this title unless the waiver is in writing and signed by the person obligated. No waiver executed prior to the expiration of the time limited for the commencement of the action by this title shall be effective for a period exceeding four years from the date of expiration of the time limited for commencement of the action by this title and no waiver executed after the expiration of such time shall be effective for a period exceeding four years from the date thereof, but any such waiver may be renewed for a further period of not exceeding four years from the expiration of the immediately preceding waiver...." (Code of Civ. Proc., sec. 360.5.)

The waiver is in writing and signed by Plaintiff. (Plaintiff's RJN, Ex. 1, p. 2 of 2.) The applicable statute of limitations under Civil Code section 882.020 subdivision (a) expired on June 18, 2025. Plaintiff's waiver of the statute of limitations defense expires under Civil Code section 360.5 four years after that date, or on June 18, 2029. The waiver is therefore still effective and Plaintiff may not raise statute of

limitations to prevent Defendant's nonjudicial foreclosure of the Property.

On reply, Plaintiff argues the statute of limitations contained in the Note is separate from the expiration of the power of sale contained in the deed of trust. The waiver contained in the Note, however, is broad enough to waive any limitations period asserted as a defense to repayment: "Borrower hereby waives...the right to plead and statue [sic] of limitations as a defense to the repayment of all or any portion of this Note, and interest thereon, to the fullest extent allowed by law...." (Plaintiff's RJN, Ex. 1, p. 2 of 2.) Plaintiff is asserting Civil Code section 882.020 as a defense to Defendant's attempt to obtain repayment on the Note by way of nonjudicial foreclosure. Plaintiff waived the right to do so by executing the Note.

Plaintiff fails to establish the likelihood of prevailing on the merits based on the statute of limitations under Civil Code section 882.020 subdivision (a).

Family Code section 1102

"Except as provided in Sections 761 and 1103, either spouse has management and control of the community real property, whether acquired prior to, or on or after January 1, 1975, but both spouses, either personally or by a duly authorized agent, are required to join in executing an instrument by which that community real property or an interest therein....is sold, conveyed, or encumbered."

(Fam. Code, sec. 1102, subd. (a).)

"This section does not apply to a lease, mortgage, conveyance, or transfer of real property, or of an interest in real property, between spouses." (Fam. Code, sec. 1102, subd. (b).) Contracts violating Family Code section 1102

subdivision (a) are voidable, rather than void.

(Safarian v. Govgassian (2020) 47 Cal.App.5th 1053, 1070

(citing Clar v. Cacciola (1987) 193 Cal.App.3d 1032, 1036-137).)

"Notwithstanding subdivision (b), both of the following shall apply: (1)

The sole lease, contract, mortgage, or deed of the husband, holding the record title to community real property, to a lessee, purchaser, or encumbrancer, in good faith without knowledge of the marriage relation, shall be presumed to be

valid if executed prior to January 1, 1975.

(2) The sole lease, contract, mortgage, or deed of either spouse, holding the record title to community real property to a lessee, purchaser, or encumbrancer, in good faith without knowledge of the marriage relation, shall be presumed to be valid if executed on or after January 1, 1975.” (Fam. Code, sec. 1102, subd. (c).)

Title to the Property was held in

Plaintiff’s and Nawal Ibrahim’s names, as husband and wife and joint tenants, pursuant to a Grant Deed executed on October 12, 2009 and recorded on October 29, 2009. (Plaintiff’s RJN, Ex. 3.) The Note and DOT were executed on June 18, 2014 and recorded on June 19, 2014. (Id.

at Ex. 1.) Plaintiff and his wife

transferred title to the Property to Adel A. Ibrahim and Nawal S. Ibrahim, trustees of the Ibrahim Family Trust dated November 16, 2017 pursuant to a

Grant Deed executed on November 16, 2017 and recorded on December 1, 2017. (Id. at Ex. 4.) Plaintiff is the sole signatory on the Note

and DOT. (Plaintiff’s RJN, Ex. 1.) Nawal did not sign either document. (Id.)

Nawal died in 2024. (Plaintiff’s Evidence, A. Ibrahim Dec.,

¶1.) Nawal’s successors or personal

representative have not objected to the DOT or sought to void the DOT pursuant to Family Code section 1102 subdivision (a).

The only person seeking to void the DOT is Plaintiff, the signing, consenting spouse. Section 1102 was

“designed to protect a spouse from the unauthorized alienation or encumbering of marital property by the other spouse; it has never been interpreted in such a way as to provide a means whereby a third party creditor of the married couple may challenge and void instruments signed by only one of the spouses.” (Clar, supra,

193 Cal.App.1032, 1037 (interpreting Family Code section 1102, formerly Civil Code section 5127).) In discussing

Family Code section 1102 subdivision (a) and Civil Code section 5127, its predecessor statute, the cases relied on by the parties only contemplate an action to void an agreement by the nonconsenting spouse. (Id.;

Hyatt v. Mabie (1994) 24 Cal.App.4th 541, 546; Droeger v. Friedman, Sloan & Ross (1991) 54 Cal.3d 26, 33-37)

Although Plaintiff is not a third

party, he is also not within the class of persons the Legislature intended to protect when it enacted section 1102. In

fact, section 1102 was enacted to protect against persons like Plaintiff. As the party moving for a preliminary injunction, Plaintiff was required to establish standing to void the Note and DOT pursuant to Family Code section 1102 subdivision (a) as the consenting spouse. Plaintiff fails to cite any authority allowing the consenting spouse to void an agreement based on Family Code section 1102 subdivision (a).

Even if Plaintiff could somehow void the DOT under Family Code section 1102 subdivision (a), his remedy would be limited to voiding the transfer to the extent only of the nonconsenting spouse's interest. "[I]f the nonconsenting spouse does not discover the encumbrance until, as here, the marriage and community have been terminated, either by dissolution nor death, the remedy of the nonconsenting spouse is limited to voiding the transfer to the extent only of that spouse's community property interest." (Hyatt, supra, 24 Cal.App.4th at 546.) Hyatt only contemplates the standing of a nonsigning, nonconsenting spouse to void an agreement pursuant to Family Code section 1102 subdivision (a) and it limits that spouse's remedy to voiding the transfer as to that spouse's community interest. This would not justify cancellation of the DOT or result in quieting title to the Property in Plaintiff's sole name.

On reply, Plaintiff argues Defendant relies on the Mitchell rule, which was rejected in *Droeger v. Friedman, Sloan & Ross* (1991) 54 Cal.3d 26, to support his claim that the DOT would only be void as to Nawal's community interest in the Property. The Mitchell line of authority rejected in *Droeger* addressed the question of "the extent of relief available when the nonconsenting spouse brought an action during marriage." (*Droeger*, supra, 54 Cal.3d at 35, 36.) Relying on Hyatt, Defendant asserts a nonconsenting spouse's relief in an action brought after termination of the marriage is limited to the nonconsenting spouse's community property interest. The rule relied on by Defendant and articulated in Hyatt is not the Mitchell rule nor does it rely on the Mitchell line of authority discussed in *Droeger*, because it deals with a nonconsenting spouse's action to void an agreement after the marriage is terminated, not during the marriage.

Defendant fails, however, to establish that the DOT is presumptively valid under Family Code section 1102 subdivision

(c)(2).[1]

In order for the exception under subdivision (c) to apply, Defendant must present evidence that he accepted his security interest in “good faith without knowledge of the marriage relation.”

(Plaintiff’s RJN, Ex. 3.) The recorded Grant Deed was held in both Plaintiff and Nawal’s individual names and it were referred to them as “husband and wife.”

(Plaintiff’s RJN, Ex. 1.) Defendant testifies that “Ibrahim told me he had sole and exclusive title to the subject prior to signing.” (M. Sahafi Dec.,

¶13.) The DOT states, “Trustor [Plaintiff Adel] hereby represents and warrants; (1) that it owns fee simple title to the Property and (b) that it has the authority and the persons signing this Deed of Trust are duly authorized to execute, acknowledge, and deliver the same.” (M. Sahafi Dec., Ex. 1.) In response to Defendant’s RFA Nos. 2 and 3, Plaintiff admitted (1) the terms of the Note and DOT “speak for themselves” and that he executed them and (2) that he informed Defendant that he owned the Property. (J. Ollinger Dec., Exs. 4, 5.) None of this evidence establishes that Defendant took the DOT “in good faith without knowledge of the marriage relation.”

Plaintiff fails to establish the likelihood of prevailing on his claims based on Family Code section 1102 subdivision (a).

Unclean Hands

“The defense of unclean hands arises from the maxim, ‘He who comes into Equity must come with clean hands.’ The doctrine demands that a plaintiff act fairly in the matter for which he seeks a remedy. He must come into court with clean hands, and keep them clean, or he will be denied relief, regardless of the merits of his claim. [¶] The defense is available in legal as well as equitable actions.” (Meridian Financial Services, Inc. v. Phan (2021) 67 Cal.App.5th 657, 685.) “The misconduct which brings the clean hands doctrine into operation must relate directly to the transaction concerning which the complaint is made, i.e., it must pertain to the very subject matter involved and affect the equitable relations between the litigants.” (Id. at 685.)

Unclean hands is a defense to legal or equitable actions. It requires that the plaintiff have acted fairly in a manner for which he seeks a remedy. Plaintiff is attempting to use the doctrine to establish an element of his own cause of action, not as a defense.

Plaintiff claims Defendant acted with unclean hands, because Defendant now claims that he was the “creditors” referred to in Item 11 of the Purchase Agreement for the Malibu Property. Plaintiff argues Defendant falsely stated to the Bankruptcy Court that there were no agreements between the bankruptcy debtor (Heavens Beach, LLC) and Plaintiff other than the Purchase Agreement. (Plaintiff’s RJN, Ex. 6, 17:13-18.) Plaintiff argues Defendant also represented to Indymac that “[n]o agent of either Seller(s) or the buyer(s) shall receive any proceeds from this transaction except as reflected in the final closing statement.” (Plaintiff’s RJN, Ex. 6, Ex. A.)

Defendant’s reliance on Item 11(c) of the Purchase Agreement does not establish that the representations identified by Plaintiff were misrepresentations. (M. Sahafi Dec., Ex. 2, Item 11(c).) First, Item 11(c) was filled out by Plaintiff as a purchase offer and it was Plaintiff who characterized the sale of the plans as between Plaintiff and “creditors,” not Defendant. Second, Defendant relied on Item 11(c) as circumstantial evidence that the \$250,000 Note was intended as compensation by all parties for the plan documents, not future services. Third, Defendant’s representations were not misrepresentations even considering Item 11(c). Item 11(c) specifically stated that the parties would arrange the purchase of plan documents as a separate transaction from the sale of the Malibu Property from Heavens Beach, LLC to Plaintiff. There is no evidence that the sale of those plan documents was between Plaintiff and Defendant in his capacity as agent of Heavens Beach, LLC. The evidence presented by both Plaintiff and Defendant treats the Note and DOT as a transaction between Plaintiff and Defendant individually, unrelated to the Purchase Agreement between Heavens Beach, LLC.

Plaintiff fails to establish the likelihood he will prevail on the merits of his claims based on the doctrine of unclean hands.

Balancing
of Hardships and Irreparable Harm

If the Court were to balance the hardships and consider irreparable harm, the balance would be in favor of Plaintiff. Plaintiff stands to lose real property as a result of the nonjudicial foreclosure sale if the injunction does not issue. If the injunction does issue, Defendant would be left in the same position he has been in since 2015.

However, a preliminary injunction must not issue unless the plaintiff can demonstrate reasonable probability that he will prevail on the merits, regardless of the balancing of the hardships or the irreparable nature of the harm. (San Francisco Newspaper Printing Co. v. Superior Court (1985) 170 Cal.App.3d 438, 442.) Plaintiff failed to demonstrate a reasonable probability the he will prevail on the merits.

Plaintiff's Motion for Preliminary
Injunction is DENIED.

IT IS SO ORDERED, PLAINTIFF TO GIVE
NOTICE.

[1] Defendant establishes that title was in the signing spouse's name, Plaintiff, which is all that subdivision (c) requires. The Court rejects Plaintiff's interpretation of subdivision (c)(2) as requiring title to be in the sole name of the signing spouse. There is nothing in the language of subdivision (c)(2) imposing such a requirement. "A sole lease, contract, mortgage, or deed transferring community real property that is executed by the husband prior to January 1, 1975, or by either spouse after January 1, 1975, is presumed to be valid if the transferor spouse held record title to the property and the lessee, purchaser, or encumbrancer acted in good faith without knowledge of the marriage relation." (11 Witkin, Summary of California Law (11th ed. 2026), Community Property, sec. 154 (citing Fam. Code, sec. 1102, subd. (a).)